

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

\_\_\_\_\_  
**CARL ROY ANDERSON**

Plaintiff,

-against-

Index No:  
Summons

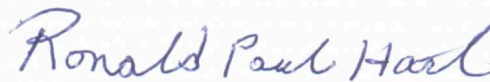
**THE CITY OF NEW YORK,  
AND POLICE OFFICER POGOLO  
POLICE OFFICERS JOHN AND/OR  
JANE DOE NUMBERS 1-10**

Defendants.  
\_\_\_\_\_X

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve the Plaintiff a copy of your answer, or if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of this date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Kings County as the place of venue based on the place of occurrence.

Dated: New York, NY 10007  
March 13<sup>th</sup> 2014



Ronald P. Hart, Esq.  
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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

X

**CARL ROY ANDERSON**

Plaintiff,

-against-

Index No:  
**VERIFIED  
COMPLAINT**

**THE CITY OF NEW YORK,  
AND POLICE OFFICER POGOLO  
POLICE OFFICERS JOHN AND/OR  
JANE DOE NUMBERS 1-10**

Defendants.

X

**NOW COMES** the Plaintiff, **CARL ROY ANDERSON**, by and through his attorney, **RONALD P. HART, P.C.**, as and for his complaint against the Defendants, and respectfully shows to this court and allege as follows:

**PARTIES:**

1. That the Plaintiff, **CARL ROY ANDERSON** (Hereinfter "Plaintiff"), is presently a resident of the City and State of New York, residing in Kings County.
2. At the time of the incident, the Plaintiff was a resident of the City and State of New York and County of Kings.
3. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees

operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendants Police officer

**POGOLO and JOHN AND/OR JANE DOES 1-10.**

5. Upon information and belief, at all times hereinafter mentioned, and on or prior to March 11<sup>th</sup>, 2013, Defendant, **THE CITY OF NEW YORK**, as a Police Officer, employed Defendants, Police Officer **POGOLO**.
6. Upon information and belief, at all times hereinafter mentioned, and on or prior to March 11<sup>th</sup>, 2013, Defendant, **THE CITY OF NEW YORK**, as a Police Officer, employed Defendants, Police Officer **JOHN AND/OR JANE DOES 1-10**.
7. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.
8. This action also arises under the rights under the Constitution and laws of the State of New York.
9. Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New

York, the **CITY OF NEW YORK** and the County of Kings, and under the authority of their office as police officers of said State, City and County.

10. The amount in controversy is \$75,000 exclusive interest.

**PENDANT STATE CLAIMS:**

11. The notice of Plaintiff's claim for damages for false arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 19<sup>th</sup> day of June 2013.
12. That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

**AS AND FOR FIRST CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**FALSE ARREST AND FALSE IMPRISONMENT:**

13. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-12 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
14. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> precinct on East New York Avenue after his wife informed him that the police needed to speak with him.

15. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
16. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
17. No bruising, blood, or physical contact that would cause injury was done.
18. The police were called and they asked Plaintiff to leave, which he voluntarily did.
19. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct. it was his understanding from his wife that all they wanted to do was talk.
20. When he arrived to the 77<sup>th</sup> precinct he spoke with an officer from the Domestic Violence division.
21. He was then placed under arrest for assaulting and harassing his wife.
22. Plaintiff was held in a jail cell at the 77<sup>th</sup> precinct and then taken to central booking and placed in jail for one night.
23. The following day Plaintiff went before a judge with a public defender and was released on his own recognizance and a restraining order was issued.
24. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the order of protection was lifted.
25. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the police came to his house and asked him to leave as it was his understanding that everything was done with.
26. The Defendants, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees.

27. That the aforesaid occurrence, to wit: false arrest and imprisonment of Plaintiff, resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.
28. That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.
29. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees.

**AS AND FOR A SECOND CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**NEGLIGENCE IN TRAINING AND SUPERVISING:**

30. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-29 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
31. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> precinct on East New York Avenue after his wife informed him that the police needed to speak with him.
32. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
33. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.

34. No bruising, blood, or physical contact that would cause injury was done.
35. The police were called and they asked Plaintiff to leave, which he voluntarily did.
36. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct, it was his understanding from his wife that all they wanted to do was talk.
37. When he arrived to the 77<sup>th</sup> Precinct he spoke with an officer from the Domestic Violence Division.
38. He was then placed under arrest for assaulting and harassing his wife.
39. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to central booking and placed in jail for one night.
40. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
41. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the order of protection was lifted.
42. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave, it was his understanding that everything was done with.
43. That the Defendant, **THE CITY OF NEW YORK**, their agents, servants and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the employees named Defendants Police Officer **POGOLO** and **JOHN AND /OR JANE DOES 1-10** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior, and conduct as

representatives of their employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent in the performance of their duties.

44. That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there-from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.
45. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**NEGLIGENCE IN PERFORMANCE OF DUTIES:**

46. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-45 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
47. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> precinct on East New York Avenue after his wife informed him that the police needed to speak with him.
48. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
49. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
50. No bruising, blood, or physical contact that would cause injury was observable.



51. The police were called and they asked Plaintiff to leave, which he voluntarily did.
52. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct, it was his understanding from his wife that all they wanted to do was talk.
53. When he arrived to the 77<sup>th</sup> Precinct, he spoke with an officer from the Domestic Violence Division.
54. He was then placed under arrest for assaulting and harassing his wife.
55. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
56. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
57. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the order of protection was lifted.
58. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.
59. That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in

that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

60. That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body these from, were caused wholly and solely by reason of the negligence of the defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

61. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

**AS AND FOR A FOURTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**FOR MALICIOUS PROSECUTION**

62. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-61 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

63. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> precinct on East New York Avenue after his wife informed him that the police needed to speak with him.

64. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.

65. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.

66. No bruising, blood, or physical contact that would cause injury was observable.

67. The police were called and they asked Plaintiff to leave, which he voluntarily did.

68. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct, it was his understanding from his wife that all they wanted to do was talk.
69. When he arrived to the 77<sup>th</sup> Precinct, he spoke with an officer from the Domestic Violence Division.
70. He was then placed under arrest for assaulting and harassing his wife.
71. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
72. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
73. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the Order of Protection was lifted.
74. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.
75. Plaintiff was thereafter forced to attend many court appearances to defend against a crime he did not commit and where there was no evidence that he assaulted his wife.
76. Plaintiff was forced to hire a lawyer at great expense to defend against these charges.
77. That a result of the malicious prosecution, Plaintiff has been damaged in his mind and suffered financial loss.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS:**

78. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-77 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
79. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> Precinct on East New York Avenue after his wife informed him that the police needed to speak with him.
80. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
81. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
82. No bruising, blood, or physical contact that would cause injury was done.
83. The police were called and they asked Plaintiff to leave which he voluntarily did.
84. On March 11<sup>th</sup>, 2013, when they requested that he come down to the Precinct, it was his understanding from his wife that all they wanted to do was talk to him.
85. When he arrived to the 77<sup>th</sup> precinct he spoke with an officer from the Domestic Violence division.
86. He was then placed under arrest for assaulting and harassing his wife.
87. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
88. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
89. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the Order of Protection was lifted.

90. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.
91. That due to Defendants' outrageous conduct of arresting Plaintiff, placing him in a jail cell for a crime he did not commit and for which there was no evidence was unconscionable conduct and shocks the conscious.
92. That due to Defendants' negligent conduct of ignoring Plaintiff's innocence supported by the utter lack of physical evidence , Plaintiff was needlessly put through the criminal justice system to defend against a crime he did not commit.
93. That this arrest went beyond what is to be considered reasonable and tolerable in a civilized a society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.
94. Plaintiff demands judgment on the complaint for his injuries suffered herein.

**AS AND FOR A SIXTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS:**

95. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-94 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
96. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> Precinct on East New York Avenue after his wife informed him that the police needed to speak with him.

97. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
98. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
99. No bruising, blood, or physical contact that would cause injury was observable.
100. The police were called and they asked Plaintiff to leave, which he voluntarily did.
101. On March 11<sup>th</sup>, 2013, when they requested that he come down to the Precinct, it was his understanding from his wife that all they wanted to do was talk to him, not arrest him.
102. When he arrived to the 77<sup>th</sup> Precinct he spoke with an officer from the Domestic Violence Division.
103. He was then placed under arrest for assaulting and harassing his wife.
104. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
105. The following day Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
106. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the Order of Protection was lifted.
107. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.

108. That due to Defendants' outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, by the actions of the Defendants.
109. That due to Defendants' outrageous conduct of arresting Plaintiff, placing him in a jail cell for a crime he did not commit and for which there was no evidence was unconscionable conduct and shocks the conscious.
110. That due to Defendants' negligent conduct of ignoring Plaintiff's innocence supported by the utter lack of physical evidence , Plaintiff was needlessly put through the criminal justice system to defend against a crime he did not commit.
111. That this arrest went beyond what is to be considered reasonable and tolerable in a civilized a society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.
112. Plaintiff demands judgment on the complaint for his injuries suffered herein.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**ON BEHALF OF PLAINTIFF CARL ROY ANDERSON**  
**FOR CIVIL RIGHT ACTION 42 USC §1983**

113. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-112 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

**Venue and Jurisdiction**

114. The jurisdiction is founded upon the existence of a Federal Question.

115. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States 42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statuses of the State and Constitution of New York.
116. That jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United State 42 U.S.C. § 1983, 1981, 1985 (3), 1988 and arising under the federal constitutional laws and statues as well as the laws, statues, and constitution of the State of New York.
117. The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.
118. The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1981, 1983, 1985 (3), and 1988 and the Constitution of the State of New York.
119. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> Precinct on East New York Avenue after his wife informed him that the police needed to speak with him.



120. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
121. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
122. No bruising, blood, or physical contact that would cause injury was done.
123. The police were called and they asked Plaintiff to leave, which he voluntarily did.
124. On March 11<sup>th</sup>, 2013, when they requested that he come down to the Precinct, it was his understanding from his wife that all they wanted to do was talk.
125. When he arrived to the 77<sup>th</sup> Precinct he spoke with an officer from the Domestic Violence division.
126. He was then placed under arrest for assaulting and harassing his wife.
127. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to central booking and placed in jail for one night.
128. The following day Plaintiff went before a judge with a public defender and was released on his own recognizance and a restraining order was issued.
129. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the order of protection was lifted.
130. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.
131. That the NYPD has a policy practice and custom of arresting persons of color for crimes they did not commit.

132. In this instance, the police's actions of falsely arresting Plaintiff when there was no visible injuries to his wife was and is accepted police policy ratified by the City of New York.
133. In engaging in the conduct described above, falsely arresting and imprisoning Plaintiff, Defendant, Police Officers, **POGOLO** and **JOHN AND/OR JANE DOES 1-10** deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983.
134. Furthermore, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendants Police Officers were acting under the color of State law.
135. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U. S.C.A § 1983 and the laws, ordinances and statutes of the State of New York to wit:
- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
  - b. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless searches of premises without a warrant, without probable cause, and without justification because such conduct was condoned by the NYPD.
  - c. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police

Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

136. As a result of the aforesaid defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.
137. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
138. Probable cause or other legal privilege or grounds did not justify the arrest and imprisonment. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
139. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
140. That the Plaintiff demands attorney fees should prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK.**

**AS AND FOR AN EIGHTH CAUSE OF ACTION**  
**ON BEHALF PF PLAINTIFF CARL ROY ANDERSON**  
**CIVIL RIGHTACTIONS 42 USC § 1985 (3):**

141. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-140 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

142. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> Precinct on East New York Avenue after his wife informed him that the police needed to speak with him.
143. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
144. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
145. No bruising, blood, or physical contact that would cause injury was done.
146. The police were called and they asked Plaintiff to leave, which he voluntarily did.
147. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct, it was his understanding from his wife that all they wanted to do was talk.
148. When he arrived to the 77<sup>th</sup> Precinct he spoke with an officer from the Domestic Violence division.
149. He was then placed under arrest for assaulting and harassing his wife.
150. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
151. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
152. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the Order of Pprotection was lifted.
153. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.

154. That at all times hereinafter mentioned, that Defendants Police Officers **JOHN/JANE DOES 1-10** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

- a. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
- b. the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
- c. the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

155. That by reason of the aforesaid violations, conspiracy and false arrest, and

false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

156. That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendant who wrongfully deprived the Plaintiff and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the

Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

**AS AND FOR THE NINTH CAUSE OF ACTION**  
**ON BEHALF OF CARL ROY ANDERSON**  
**FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988:**

157. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-156 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
158. Should Plaintiff be victorious upon his claims, he intends to assert a claim for attorney fees on his federal claims pursuant to 42 USC section 1983, 1981, 1985 (3) et seq.

**AS AND FOR THE TENTH CAUSE OF ACTION**  
**ON BEHALF OF CARL ROY ANDERSON**  
**FOR RACIAL DISCRIMINATION PURSUANT TO 42 USC SECTION**  
**1981:**

159. The Plaintiff, **CARL ROY ANDERSON**, hereby incorporates by reference each and every preceding paragraph 1-158 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
160. That on or about March 11<sup>th</sup>, 2013, Plaintiff, **CARL ROY ANDERSON** (Hereinafter "Plaintiff"), went to the 77<sup>th</sup> Precinct on East New York Avenue after his wife informed him that the police needed to speak with him.
161. A week earlier he and his wife had a disagreement over her taking his cell phone while he was in the shower.
162. Plaintiff and his wife tussled with one another, grabbing one another to obtain the cell phone.
163. No bruising, blood, or physical contact that would cause injury was done.

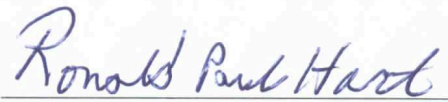


164. The police were called and they asked Plaintiff to leave, which he voluntarily did.
165. On March 11<sup>th</sup>, 2013, when they requested that he come down to the precinct, it was his understanding from his wife that all they wanted to do was talk.
166. When he arrived to the 77<sup>th</sup> precinct he spoke with an officer from the Domestic Violence Division.
167. He was then placed under arrest for assaulting and harassing his wife.
168. Plaintiff was held in a jail cell at the 77<sup>th</sup> Precinct and then taken to Central Booking and placed in jail for one night.
169. The following day, Plaintiff went before a judge with a Public Defender and was released on his own recognizance and a restraining order was issued.
170. On June 10<sup>th</sup>, 2013, Plaintiff's case was dismissed and the order of protection was lifted.
171. Plaintiff unnecessarily spent a night in jail for a crime he did not commit. On the day the Police came to his house and asked him to leave it was his understanding that everything was done with.
172. That due to Defendants' outrageous conduct, Plaintiff was injured in mind and body, still suffers and upon information and belief will continue to suffer great mental pain, by the actions of the Defendants.
173. That due to defendants' intentional, and reckless conduct of completely ignoring Plaintiff's claim of innocence, Plaintiff was needlessly put through the system. That this arrest went beyond what was to be considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and bod, still suffers and upon information and belief, will

continue to suffer great mental pain, and he was rendered emotionally and mentally distress and so remains so damaged.

174. Upon information and belief, Plaintiff was arrested by white police who do not treat Black and African American Citizens in the same manner they treat white persons by arresting for crimes they did not commit.
175. Plaintiff demands judgment on the complaint for his injuries suffered herein.
176. That upon information and belief, the police do not treat other similarly situations involving persons whom are not African or African Americans in the same manner that they treated the Plaintiff herein by negligently arresting Plaintiff without a proper and thoroughly investigation.
177. That by reason of the aforesaid violations, the Plaintiff requests the following relief:
  - a. Compensatory damages in the sum, which exceeds the jurisdictional limits of all lower courts.
  - b. Punitive damages in the sum, which exceeds the jurisdictional limits of all lower courts.
  - c. An award of reasonable attorney's feed, costs and disbursements;
  - d. Plaintiff requests a trial by jury of all issues involved in this complaint;
  - e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007  
March 13, 2014



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SUPREME COURT OF THE CITY OF NEW YORK  
COUNTY OF KINGS

INDEX NUMBER: 53843/2014

CARL ROY ANDERSON,

Plaintiff(s),

-against-

THE CITY OF NEW YORK,  
POLICE OFFICER POGOLO AND  
POLICE OFFICERS JOHN AND/OR  
JANE DOES 1-10

Defendant (s),

SUMMONS AND COMPLAINT

RONALD P. HART, ESQ.  
Attorney(s) for Plaintiff  
225 Broadway, Suite 2515  
New York, N.Y. 10007  
Tel. (212) 766-1443

To Attorney(s) for Defendant  
Signature Rule 130-1.1-a)

Service of a Copy of the Within Summons and Complaint is Hereby Admitted.

Dated: \_\_\_\_\_

Attorney(s) for Respondents

Counselor(s): Please Take Notice that a

NOTICE OF ENTRY that the within is a true copy of

**NOTICE OF SETTLEMENT**

that an order for \_\_\_\_\_ of which the within is a true copy will be presented for settlement to  
the HON. \_\_\_\_\_ one of the justices of the within named Court at  
on the \_\_\_\_\_ day of \_\_\_\_\_ 2014 at 9:30 A. M.

Dated:

To: